

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO.: 25-11

PHILLIP MARCIANO LLC
Complainant,

v.

US CARGO SERVICES INC.
Respondent

AFFIRMATION IN OPPOSITION TO MOTION TO DISMISS

JASON J. REBHUN, being duly admitted to practice law in the state and federal courts of New York and New Jersey, affirms the following under the penalties of perjury:

1. I am counsel to the Complainant Phillip Marciano LLC (“Complainant”) in this matter. As such, I am fully familiar with the facts and circumstances herein.
2. I submit this Affirmation in Opposition to Respondent US Cargo Services Inc.’s (“Respondent”) baseless and frivolous letter motion seeking to dismiss this Complaint for failure to state a claim under the conclusory and unsupported position that it had nothing to do with the subject shipments.
3. Recent communications from Tausif Hassan (“Hassan”), the shipping broker who hired Respondent as freight forwarder to complete shipment of Complainant’s goods, wholly undermine Respondent’s attenuated position because he admits that he uses Respondent as his exclusive shipping broker and that he intentionally chose to not deliver Complainant’s goods as retribution.

4. Respondent's conclusory claims are easily overcome and must be denied at this pre-discovery juncture. As explained in greater detail below, Hassan and Respondent are playing games and holding Complainant's time sensitive cargo "hostage." As Hassan and Respondent are well aware, Complainant needs its seasonal goods to resell and if those goods are not timely delivered to Complainant, the effects will be disastrous.

LEGAL STANDARD

5. Although the FMC's rules do not explicitly provide for motions to dismiss, the "Commission looks to Federal Rule of Civil Procedure 12(b)(1) when considering dismissals based on lack of subject matter jurisdiction, and to Rule 12(b)(6) when considering dismissals based on failure to state a claim." MAVL Capital v. Marine Transport Logistics, 2020 FMC LEXIS 216 (FMC 2020).
6. Under Fed. R. Civ. P. 12(b)(6), the facts alleged are taken as true and all reasonable inferences are drawn in the complainant's favor." MAVL Capital, 2020 FMC LEXIS 216 (FMC 2020) citing Maher Terminals, LLC v. The Port Authority of New York and New Jersey, 34 S.R.R. 35, 54, 2015 FMC LEXIS 43 (FMC 2015).
7. As well established by the United States Supreme Court, "to survive motions to dismiss for failure to state a claim under Rule 12(b)(6), a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007). A claim "has facial plausibility when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." Ashcroft v. Iqbal, 556 U.S. 661, 663 (2009).

8. “When there are well-pleaded factual allegations, a court should assume their veracity and then determine whether they plausibly give rise to an entitlement to relief.” Iqbal, 556 U.S. at 679. “The focus at this stage is not with whether a complainant can prevail on its claim, but whether it has adequately pled the claim.” Negron v. USAA Casualty Ins. Co., 2014 U.S. Dist. LEXIS 125179 (M.D. Tenn. 2014).

ARGUMENT

9. Notwithstanding the sufficiently well-plead Complaint which more than adequately pleads wrongdoing against Respondent as the carrier and/or forwarder involved with the subject Bills of Lading, Respondent’s own submissions warrant the denial of the motion. Respondent was supposed to complete delivery of the subject cargo to Complainant and refused to do so at Hassan’s direction based upon an unrelated balance that Hassan purports Complainant owes. This has caused and will continue to cause extensive damages to Complainant and Complainant has had to incur unnecessary demurrage charges as a result.
10. Respondent’s motion conclusively and baselessly states that it was not involved with two of the three subject Bills of Lading. Respondent proffers no supporting proof other than the same copies of the Bills of Lading that have already been furnished to the Commission, as well as a letter dated July 7, 2025 authored by Hassan (the “Hassan Letter”), a principal of D and T Apparels Inc (referenced in the Complaint). A copy of the Hassan Letter is annexed hereto as **Exhibit 1**.
11. The Hassan Letter is fatal to Respondent’s position and all but proves Complainant’s allegations both herein as well as within the pending action it brought in the United States District Court for the District of New Jersey (under case number 25-cv-11944).

12. In the Hassan Letter, Hassan claims that US Cargo was his “exclusive shipping forwarder,” yet simultaneously asserts that US Cargo “never held any of my containers.” Hassan also admits receiving the subject containers, stating they “used to be in my possession,” without identifying where they are now, or when, where, or through whom he possessed them (presumably, they would be with his “exclusive shipping forwarder” – US Cargo).
13. Hassan and US Cargo are incentivized to continue their improper gamesmanship and scheme to delay, obfuscate and obstruct to have Complainant pay more to salvage whatever can be retrieved before the season to sell those items closes. Almost two months ago prior to the institution of this action, Hassan claimed that Complainant owed him, his company or Respondent (he has been unclear on that front) approximately \$300,000.00. As of the date of the Hassan Letter, Hassan now suddenly claims that Complainant owes “half a million” without providing any proof of the balance or how it grew by \$200,000.00 in under two months.
14. Most notably, Hassan confesses to the wrongdoing leading to both this Complaint and the District Court Action, stating that delivery was deliberately withheld to Plaintiff because of a claimed outstanding balance: “we decided not to deliver this cargo to original client [Plaintiff] because of our long-standing dues with them for around half a million.”
15. Notwithstanding the Hassan Letter, which certainly warrants both denial of Respondent’s motion and the need for discovery in this matter, recent text message communications had between Complainant (specifically through its principal Eddie Halabi) and Mr. Hassan on July 14, 2025 further implicate Respondent’s role and involvement herein (the “Hassan Text Messages”). Copies of the Hassan Text Messages are annexed hereto as **Exhibit 2**.

16. The messages reflect that Hassan seems to be acting as a “middleman” for Eddie Halabi and a gentleman at US Cargo (likely its president Syed A Zaidi who submitted this motion on behalf of Respondent). Again, Hassan represented that he exclusively uses US Cargo to coordinate his shipments into the United States and has an ongoing business relationship (for years). Adding insult to injury, Complainant is confident that this matter could be resolved in moments if Hassan honors his word and does his job. Hassan has not because he is monetarily incentivized to delay, incentivized to demand more money from Complainant, while operating overseas and believing that he is “untouchable.”
17. The Hassan Text Messages stemmed from negotiations with Complainant who has been tirelessly attempting to resolve this matter. Complainant has agreed to pay a certain amount of money upfront for release of one of the three containers (to develop trust that Hassan/US Cargo will not just steal the entire agreed upon payment amount), with the remaining two being released for an additional sum of money after this action and the District Court Action are discontinued. Differently, Hassan/US Cargo has only agreed to give Complainant its goods after Complainant pays them the unverified and unsupported balance they claim is owed and discontinues both cases.
18. Of note, Respondent is well aware of the implication here, these cases, and how Complainant continues to be damaged on a daily basis. That Hassan/US Cargo will only “play ball” after these court cases are discontinued wholly belies trust and reeks of unethical, immoral, and improper pressuring techniques. In fact, the very first message from Hassan in the Hassan Text Messages states: “Yes I [Hassan] told him [representative of US Cargo] but he [US Cargo] was not agreed, he [US Cargo] wanted total withdrawal of the lawsuit to sort it out mutually.” Hassan continued and stated: “[US Cargo’s] lawyer

warned him not to act on his own if lawsuit in progress”¹ and “I [Hassan] tried to convince him [US Cargo] but his lawyer advised him not to do so...His lawyer suspect Jason [our firm] will use it as an evidence to the court.”

19. These messages firmly establish Respondent’s involvement and indicate that Respondent is in fact responsible for delivery of all three containers. Underscoring that indication is the representation that Respondent could deliver the three subject containers in exchange for a sum of money greater than what Complainant may owe.
20. Accordingly, it is respectfully requested that the Commission deny Respondent’s motion to dismiss in its entirety. The Complaint properly pleads its allegations against Respondent and both the Hassan Letter as well as the Hassan Text Messages undermine Respondent’s baseless position. Discovery is needed in this matter to at least: (1) fully understand the relationship between Respondent and Hassan; and (2) uncover where Complainant’s goods were diverted to and currently located.

Dated: New York, New York
July 24, 2025

Yours, etc.

Jason J. Rebhun

Law Offices of Jason J. Rebhun, P.C.
Attorneys for Complainant
40 Wall Street, Suite 1607
New York, NY 10005
(646) 201-9392
jason@jasonrebhun.com

¹ US Cargo retained counsel to represent it in the District Court Action, Tausif’s entities have not yet appeared therein so this can only describe US Cargo.